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Case Number: 23TRCV03946 Hearing Date: July 28, 2026 Dept: B

Moving

Parties: Cross-defendant Pablo Garcia

Responding

Party: Cross-complainant Edwin A. Pantaleon

Demurrer to First

Amended Cross-Complaint and Motion to Strike

The Court considered the moving, opposition, and reply papers.

RULING

See

below.

BACKGROUND

On December 1, 2023, Pablo Garcia (self-represented) filed a verified complaint against Edwin A. Pantaleon for partition by sale of real property at 4905 W. 118th Place, Hawthorne.

On July 11, 2024, plaintiff filed a substitution of attorney and is currently represented.

On December 30, 2024, a default was entered against defendant.

On December 31, 2024, defendant filed an answer.

On January 2, 2025, plaintiff filed a notice of lis pendens.

On January 22, 2025, defendant (self-represented) filed a motion to set aside default.

On February 25, 2025, the Court granted defendant's motion to vacate default.

On August 5, 2025, the Court deemed plaintiff's discovery motions moot and ordered defendant to pay monetary sanctions.

On October 1, 2025, the Court granted defendant's motion for leave to file a cross-complaint.

On October 9, 2025, defendant filed a verified cross-complaint for (1) fraud, (2) quiet title, (3) breach of oral agreement, (4) violation of Penal Code §496(c), and (5) declaratory relief.

On April 14, 2026, the Court sustained the demurrer to the cross-complaint without leave to amend as to the third and fourth causes of action, sustained with leave to amend as to the first and second causes of action, and overruled it as to the fifth cause of action. The motion to strike was granted with leave to amend as to punitive damages and granted without leave to amend as to the prayers for attorney's fees, treble damages, and special damages.

On May 14, 2026, cross-complainant filed a FACC for (1) fraud, (2) quiet title, and (3) declaratory relief.

LEGAL

AUTHORITY

Demurrer

When

considering demurrers, courts read the allegations liberally and in context. Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144

Cal. App. 4th 1216, 1228. "A demurrer

tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." SKF

Farms v. Superior Court (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." Hahn v. Mirda (2007) 147 Cal. App. 4th 740, 747.

Strike

"The

court may, upon a motion . . . , or at any time in its discretion, and upon

terms it deems proper: (a) Strike any

irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any

pleading not drawn or filed in conformity with the laws of this state, a court

rule, or an order of the court." CCP

§436(b).

CCP §431.10 states:

"(a) A material allegation in a pleading is one essential to the claim

or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2)

An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An

'immaterial allegation' means 'irrelevant matter' as that term is used in Section 436."

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

DISCUSSION

Demurrer

Cross-defendant

Pablo Garcia demurs to each of the three causes of action in the FACC on the grounds that they fail to allege sufficient facts to constitute a cause of action and are uncertain.

The

Court notes that the Court had previously overruled the demurrer to the cause of action for declaratory relief (fifth cause of action in the cross-complaint and third cause of action in the FACC).

The allegations remain the same in the FACC.

The FACC

alleges that in July 2009, cross-complainant and his family members wished to purchase the real property located at 4905 W. 118th Place, Hawthorne. FACC, ¶7. At the time of the intended purchase, cross-complainant and his family members did not have the requisite credit score to qualify for a loan. Whereupon, cross-complainant's family reached out to cross-defendant for assistance. Id., ¶8. Cross-defendant represented that he was willing to assist cross-complainant and his family to purchase the property by being on the loan and that cross-defendant would not claim any ownership interest in the property. Cross-defendant agreed to assist cross-complainant because he and cross-complainant's stepfather were good friends. Id., ¶9. Cross-complainant and his family relied on cross-defendant's representations. Id., ¶10. Cross-defendant represented that he had to be on title to the property since he would be on the loan. Initially, cross-complainant expressed concerns in that cross-defendant would become an owner of the property. In order to ease cross-complainant's concerns, cross-defendant indicated that he was only on title in a nominal manner, that he would never claim any ownership interest in the property, and that he would convey title back to cross-complainant upon a future event such as a sale, refinance, or other arrangements. Id., ¶11. As an accommodation, title to the property was held under cross-complainant and cross-defendant's names. Id., ¶13.

The

FACC further alleges that cross-complainant and his family paid all of the

downpayment and closing costs and they have paid each mortgage payment, property taxes, insurance, utilities, maintenance, and repairs associated with the property since its acquisition in 2009.

Id., ¶14. Cross-complainant has

since occupied the property to the present with his family members. Id., ¶15.

At no relevant time did cross-defendant assert an ownership interest in the property or assert a right to occupy the property or inquire about any matter concerning or related to the property or reside at the property or indicate he was an owner of the property or request to sell the property. Id., ¶¶16-21.

In the ensuing years, cross-defendant has communicated that he was only assisting cross-complainant and his family purchase the property and that cross-defendant expected no ownership interest in the property. Id., ¶22.

As a result, cross-complainant has relied on cross-defendants' words, actions, and inactions and cross-complainant has genuinely and reasonably believed that cross-defendant was merely assisting him and his family purchase the property without any actual ownership interest in the property. Id., ¶23.

The FACC

alleges that it was not until about October 2023 that cross-defendant suddenly changed his position when he claimed that cross-complainant should buy him out or that the property should be sold and the proceeds split equally. This was the first time cross-complainant realized that what cross-defendant had represented over the years concerning ownership of the property was false.

Id., ¶25.

First cause of action for fraud

The

elements of a fraud claim are (1) misrepresentation; (2) knowledge of falsity; (3) intent to deceive; and (4) reliance and resulting damage. *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal. App. 4th 282, 290.

“Promissory

fraud' is a subspecies of fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. An action for promissory fraud

may lie where a defendant fraudulently induces the plaintiff to enter into a contract." *Engalla v. Permanente*

Medical Group, Inc. (1997) 5 Cal. 4th 951, 973-974 (citation and internal

quotation omitted).

“To

withstand demurrer, the facts constituting every element of fraud must be alleged with particularity, and the claim cannot be salvaged by references to the general policy favoring the liberal construction of pleadings.” *Goldrich v. Natural Y Surgical Specialties, Inc.* (1994) 25 Cal. App. 4th 772, 782. The particularity requirement necessitates pleadings facts that “show how, when, where, to whom, and by what means the representations were tendered.” *Lazar v. Superior Court* (1996) 12 Cal. 4th 631, 645.

The FACC

realleges the allegations above.

Cross-defendant

argues “sham” pleading, asserting that para. 11 of the cross-complaint (Cross-Complainant is informed and believes that since Cross-Defendant was on the loan, he was required to be on title to the Property) contradicts newly added para. 33 in the FACC (Cross-Defendant knew his representations were false because he knew that he did not have to be on title to the Property at the acquisition of the Property). Cross-defendant also argues that using 2023 conduct to establish 2009 fraudulent intent is legally insufficient. As to a purported promissory fraud theory, cross-defendant asserts that the FACC alleges no facts establishing that cross-defendant harbored an undisclosed intent not to perform when he made any of the alleged 2009 representations.

Cross-defendant

also argues that the new alleged “misrepresentations”—that cross-defendant “had to be on title” and that he would “convey title back upon a future event such as sale, refinance, or other arrangements”—lack required specificity.

In

opposition, cross-complainant argues that he has sufficiently pled the elements. Cross-complainant asserts that the alleged fraud arose from an informal family-and-friend accommodation arrangement approximately fourteen years ago, and that the details of cross-defendant’s own knowledge, intent, and the circumstances under which he made the alleged promises are matters particularly within cross-defendant’s knowledge. Cross-complainant also argues that cross-defendant’s “scienter argument” improperly demands proof at the

pleading stage. As for cross-defendant's

"sham" pleading argument, cross-complainant contends that the FACC does not reverse or contradict that allegation but instead clarifies and expands upon it.

The

Court finds that the allegations are insufficient. In the initial cross-complaint, cross-complainant alleged that cross-defendant's name was required to be on title to the property because he was on the loan. Without explanation, cross-complainant amended that allegation to state that cross-defendant falsely represented that he was required to be on title. This is not a clarification or expansion upon the original allegation, it is a contradiction. Under the sham pleading doctrine, the Court will not consider the contradictory allegation in para. 33 of the FACC. To the extent cross-complainant relies on that representation as the basis of his fraud claim, the claim cannot survive.

Cross-complainant

also alleges, however, that, at the time he made it, cross-defendant did not intend to keep his promise that he would forbear from claiming an interest in the property, and that he would convey title back to cross-complainant upon a future sale of the property. These allegations are conclusory. Pleading fraud with particularity "necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 (quotation marks omitted). This is not information that is uniquely within the possession of cross-defendant. Cross-complainant claims that the representations were made to him sometime in 2009, yet fails to allege any specific facts about the misrepresentations. Given that the property was also purchased in 2009, the allegations do not provide sufficient specificity.

Finally,

the allegations state that cross-complainant relied on cross-defendant's false promises by adding cross-defendant's name to the deed and making all payments on the property, alleging he would not have done so but for the false promises. Cross-complainant, however, alleges that he asked cross-defendant to be on the loan so that cross-complainant could qualify to purchase the property for his family to live in. And, as discussed, cross-complainant alleged

in the initial cross-complaint that he was required to add cross-defendant's name to the deed because cross-defendant was on the loan. Thus, cross-complainant's own allegations undercut the element of reliance.

The

Court previously sustained a demurrer on this cause of action based on these deficiencies and granted leave to amend.

Cross-complainant has not adequately amended the cross-complaint, nor shown a reasonable possibility of amending to cure these deficiencies.

The

demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Second cause of action to quiet title

To state a claim for quiet title, a complaint must describe (1) the property, (2) plaintiff's title or interest and the basis for the claim, (3) defendants asserting adverse claim or antagonistic property interest, (4) date of which the determination is sought, and (5) prayer for determination of title. CCP

§761.020. Any party seeking to quiet

title must establish that he or she has superior title to the real property in dispute. Twain Harte Homeowners Ass'n

v. Patterson (1987) 193 Cal. App. 3d 184, 188.

The FACC alleges that cross-complainant's title to

the property is superior to cross-defendant's because cross-defendant had acquired title by fraud perpetrated against cross-complainant. FACC, ¶43.

Cross-defendant has asserted an adverse claim to the property and against cross-complainant's property interests in the property. Id., ¶45.

Cross-complainant is entitled to a judicial declaration that he is the 100% legal and beneficial owner of the property and that cross-defendant has no legal, equitable, or beneficial ownership interest in the property. Id., ¶46.

Cross-complainant seeks quiet title in his favor and against cross-defendant as of December 1, 2023, the date on which the complaint was filed. Id., ¶47.

Cross-defendant argues that this claim fails because

it is expressly and exclusively based upon fraud, which, as argued under the first cause of action, fails.

In
opposition, cross-complainant argues that the allegations are sufficient based
on underlying fraud.

The
Court finds that the allegations are insufficient. As stated above, the allegations are
insufficient as to underlying fraud. The
FACC alleges that both parties are on the loan and on title.

The
demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Third
cause of action for declaratory relief

“A complaint for declaratory relief is legally
sufficient if it sets forth facts showing the existence of an actual
controversy relating to the legal rights and duties of the respective parties
under a written instrument and requests that these rights and duties be
adjudged by the court.” *Maguire v.*
Hibernia S. & L. Soc. (1944) 23 Cal. 2d 719, 728. See also CCP §1060.

The FACC alleges that an actual controversy has
arisen and now exists between the parties regarding their respective property
interest rights in the property. FACC, ¶49. Cross-complainant contends he is the 100%
legal and beneficial owner of the property and cross-defendant denies that
contention. *Id.*, ¶50.

As stated above, the Court overruled
cross-defendant's demurrer to this cause of action. See CCP §430.41(b) (“A party demurring to a
pleading that has been amended after a demurrer to an earlier version of the
pleading was sustained shall not demur to any portion of the amended . . . cross-complaint
. . . on grounds that could have been raised by demurrer to the earlier version
of the . . . cross-complaint . . .”).

Cross-defendant argues that the “newly reduced
three-claim structure of the FACC makes the purely duplicative nature of this
claim far more apparent.

The Court finds that this cause of action continues to survive a demurrer, even though the other causes of action do not. Where a claim for declaratory relief appears, “the court should declare the rights of the parties whether or not the facts alleged establish that the plaintiff is entitled to favorable declaration.” *Wellenkamp v. Bank of America* (1978) 21 Cal.3d 943, 947.

The demurrer is OVERRULED.

Motion to Strike

Cross-defendant requests that the Court strike para. 40 and prayer for punitive damages and para. 5 (agency allegations).

The Court notes that cross-defendant again improperly combined two motions into one.

The Court also notes that it had previously given cross-complainant leave to amend the claim for punitive damages. Cross-complainant made no changes in the FACC. Further, the underlying claim for fraud is insufficient to support punitive damages.

As to “agency allegations,” this is a dispute between two named individuals but the FACC also names “unknown persons and Roes 1 through 20.” The Court finds no grounds to strike.

The motion is GRANTED WITHOUT LEAVE TO AMEND as to para. 40 and claim for punitive damages and DENIED as to para. 5.

ORDER

Cross-defendant’s request for judicial notice is GRANTED.

The

demurrer to the first and second causes of action in the FACC is SUSTAINED
WITHOUT LEAVE TO AMEND. The demurrer to
the third cause of action is OVERRULED.

The
motion to strike is GRANTED WITHOUT LEAVE TO AMEND as to para. 40 and prayer
for punitive damages and DENIED as to para. 5.

Cross-defendant
is ordered to file an answer within twenty days.

Cross-defendant
is ordered to give notice of ruling.